

14. **Of following trust-money into land.**—In the question, whether a purchase in the name of a third person can be established by parol testimony, is also involved the question, whether trust-money can be followed into *land* by parol. A purchase with trust-money is virtually a purchase paid for by the *cestuis que trust*; and on the ground that such a purchase is a trust resulting by operation of law, and not within the purview of the Statute of Frauds, it has been settled that parol evidence is clearly admissible (c).

15. **The resulting trust may be rebutted by parol.**—As in the cases we have been considering the trust results to the real purchaser by presumption of law, which is merely an *arbitrary implication* in the absence of *reasonable proof* to the contrary, the nominal purchaser is at liberty to rebut the presumption by the production of parol evidence showing the intention of conferring the beneficial interest (d); and the evidence to rebut need not be as strong as evidence to create a trust (e). And as he may repel the presumption *in toto*, so may he in part; as by proving the purchaser's intention to permit the legal tenant to enjoy beneficially for life (f); [or where stock has been transferred into the joint names of the transferor and another person by proving the intention of the transferor to have the dividends for his life, and that the transfer should enure for the benefit of such other person if he survived the transferor (g).]

*16. **Declarations subsequent to the purchase.**—[*170] When it has been once ascertained that the understanding of the parties at the time of the purchase was that the legal owner should also be the beneficial owner, it is not

(c) *Lench v. Lench*, 10 Ves. 517, per Sir W. Grant; *Ryall v. Ryall*, 1 Atk. 59; *S. C. Amb.* 413; *Lane v. Dighton*, Amb. 409; *Balgney v. Hamilton*, Amb. 414; *Trench v. Harrison*, 17 Sim. 111.

(d) *Goodright v. Hodges*, 1 Watk. Cop. 227; *S. C. Lofft*, 230; *Rider v. Kidder*, 10 Ves. 364; *Rundle v. Rundle*, 2 Vern. 252, 264; *Taylor v. Taylor*, 1 Atk. 386; *Redington v. Redington*, 3 Ridg. 106; see 165, 177, 178;

[*Standing v. Bowring*, 27 Ch. D. 341;] *Garrick v. Taylor*, 29 Beav. 79; *Beecher v. Major*, 2 Dr. & Sm. 431.

(e) *Nicholson v. Mulligan*, 3 I. R. Eq. 332, per cur.

(f) *Rider v. Kidder*, 10 Ves. 360; see 368; *Benbow v. Townsend*, 1 M. & K. 506; and see *Nicholson v. Mulligan*, 3 I. R. Eq. 308.

[(g) *Standing v. Bowring*, 27 Ch. D. 341.]